COMPLAINT (ASSUMPSIT-MONEY OWED); DECLARATION; EXHIBIT(S); SUMMONS

FILED
DISTRICT COURT OF
THE FIRST CIRCUIT
2019 MAY 31 P 1:43
CLERK

Form #1DC07

Electronically Filed
FIRST CIRCUIT
1RC191003776
31-MAY-2019
01:43 PM
Dkt. 1 CMP

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

Reserved for Court Use

Civil No. 1RC19 1 03776

Defendant(s)

NIKODEM PIKOR

Filing Party(ies)/Filing Party(ies)' Attorney (Name, Attorney No., Firm Name (if applicable), Address, Tel. and Fax No.)
PHILIP L. LAHNE (3709) / GLENN S. HORIO (8151)
Anderson Lahne & Fujisaki LLP
733 Bishop Street, Suite 2301, Honolulu, Hawaii 96813
Telephone (808) 536-8177 Facsimile (808) 356-7631

Amount Claimed by Plaintiff: See Exhibit 1

Last Date of Indebtedness: May 24, 2019

COMPLAINT

1. This Court has jurisdiction over this matter and venue is proper.

2. On or about May 24, 2019, Defendant(s) owed money to Plaintiff(s) as follows:

See Exhibit 1

3. ☑ A copy of the written instrument on which the debt is based is attached as Exhibit 1 and Exhibit 2.

4. Plaintiff(s) asks for Judgment in the principal amount of $ See Exhibit 1.
In addition, the Court may award court costs, interest and reasonable attorney's fees.

5. The Servicemembers Civil Relief Act, 50 U.S.C. App. §501 may apply to a Defendant who is classified active duty as defined in the Act. Please check all that apply.
   - ☑ To the best of my knowledge, the Defendant is not an active duty member of the Military.
   - ☐ The following Defendant is an active duty member of the Military. Name: _____.
   - ☐ I am unable to determine whether the Defendant is an active duty member of the Military. Please attach separate sheet indicating what attempt was made to determine Defendant's military status.

Date: MAY 3 1 2019

Signature of Plaintiff(s)/Plaintiff(s) Attorney:

Print/Type Name(s): PHILIP L. LAHNE / GLENN S. HORIO

DECLARATION

I have read this Complaint, know the contents and verify that the statements are true to my personal knowledge and belief.
I DECLARE UNDER PENALTY OF PERJURY THAT THE ABOVE IS TRUE AND CORRECT.

Date: 5/27/19

Signature of Declarant:

Print/Type Name(s): WILLIAM E. DENISON, Property Manger

In accordance with the **Americans with Disabilities Act**, and other applicable State and Federal laws, if you require an accommodation for your disability when working with a court program, service, or activity please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 **at least (10) working days before** your preceeding, hearing, or appointment date.

I certify that this is a full, true, and correct copy of the original on file in this office.

Clerk, District Court of the above Circuit, State of Hawai'i

EXHIBIT "1"

1. Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. ("Association") is a Hawaii nonprofit corporation of apartment owners which administers and operates the Marine Surf Waikiki condominium project situate at the intersection of Kuhio and Seaside Avenues, Waikiki, Honolulu, City and County of Honolulu, State of Hawaii ("Project"), existing as established pursuant to Chapter 514A and/or Chapter 514B, Hawaii Revised Statutes, as amended, (collectively "Condominium Property Law"); the Marine Surf Waikiki Declaration of Horizontal Property Regime dated November 3, 1965 ("Declaration") and the By-Laws of the Association of Apartment Owners of the Marine Surf Waikiki Condominium dated November 3, 1965 ("By-Laws"), recorded together in the Office of the Assistant Registrar, Land Court, State of Hawaii ("Land Court") as Document No. 390025; and the Marine Surf Waikiki Condominium Association of Apartment Owners House Rules (collectively "Project Documents"), as may be amended and/or restated, and acting by and through its Board of Directors.

2. Defendant NIKODEM PIKOR ("OWNER") is one of the owners of Unit No. 906 of the Marine Surf Waikiki condominium project located at 364 Seaside Avenue, Apartment No. 906, Honolulu, Hawaii 96815, by virtue of that certain Personal Representative's Deed dated April 3, 2013, and recorded in the Land Court as Document No. T-8509308, and owners are subject to and must comply with the Project Documents and the Condominium Property Law.

3. On August 3, 2018, OWNER was informed of the amounts owing for the costs of repairing the damage to one of the elevators at the Project, caused by OWNER on or about May 9, 2018 at approximately 3:11 p.m., when OWNER, without advance notice to the managing agent or front office, used the elevator to move large household goods, and during which time OWNER placed a large container in a position between the doors of the elevator so that when the elevator doors attempted to close, the doors were not allowed to close and therefore suffered damage for which repair was required ("Elevator Incident").

4. On or about August 3, 2018, demand was made upon OWNER for the amounts owing to the Association in connection with the Elevator Incident, and as reflected in the thyssenkrupp

invoice no. 5000875502 for the amount of $2,260.15 ("Invoice") a copy of which is included herewith as Exhibit "2", for the costs to repair the damage to the elevator, and which said Invoice was provided to OWNER on or about August 8, 2018, with a further demand for payment.

5. The damage to the elevator constitutes a violation of the Association's Governing Documents, and OWNER's failure to pay for the repair costs is a further wilful, wanton, and purposeful violation of the Project Documents.

6. On September 14, 2018, OWNER was again informed of the repair costs, and again on November 2, 2018 in connection with a demand for the legal fees and costs incurred by the Association in connection with having to seek OWNER's compliance with the Condominium Property Act and the Association's Project Documents, as the result of the Elevator Incident.

7. OWNER's denial and/or dispute of the Association's demand for reimbursement of the repair costs and the legal fees and costs incurred by the Association, are therefore construed in this instance to question the interpretation of the Association's Project Documents.

8. Through May 9, 2019, OWNER has failed, neglected and refused to pay the sum of $2,260.15, being the repair costs related to the Elevator Incident, in violation of the Project Documents and the Condominium Property Law, requiring the Association to retain legal counsel to enforce the Project Documents against OWNER, and therefore causing the Association to incur attorneys' fees and costs in connection with said enforcement efforts, and said fees and costs will continue to be incurred during the pendency of this action which further costs and expenses shall be shown and/or sought by appropriate motion.

9. As noted above OWNER is subject to and must comply with the Project Documents and the Condominium Property Law, which provide in relevant part as follows:

> **Article VI, Section 6(h) of the By-Laws provides:**
>
> Nothing shall be allowed, done or kept in any apartments or common elements of the project which would overload or impair the floors, walls or roofs thereof, or cause any increase in the ordinary premium rates or the cancellation or invalidation of any insurance thereon maintained by or for the Association, nor shall any noxious or offensive activity or nuisance be made or suffered thereon.

Section X. General, subsection E. of the House Rules provides in relevant part:

> Advance notice must be given to the Managing Agent or the Front Office when household goods or large furniture items are to be moved in order that an elevator can be scheduled for use.

Article VI, Section 2(c) of the By-Laws provides:

> Every apartment owner shall reimburse the Association for any expenditures incurred in repairing or replacing any common elements or furniture, furnishings and equipment thereof damaged or lost through the fault of such apartment owner or any person using the project under him and shall give prompt notice to the Managing Agent of any such damage, loss or other defect when discovered.

Section X. General, subsection A. of the House Rules, similarly provides:

> Owners are individually financially responsible for any damage or destruction to common elements that they cause or their tenants, guests, agents or persons working for them cause.

10. Article VI, Section 9 of the By-Laws provides for the establishment of the House Rules and Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration confirms the obligations of all owners at the Project, and their guests, servants and undertenants, to strictly observe said rules. Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration provides:

> All apartment owners, their tenants, families, servants and guests, and any other persons who may in any manner use the project or any part thereof, shall be bound by and comply strictly with the provisions of this Declaration, the by-laws of the Association and all agreements, decisions and determinations of the Association, as lawfully made or amended from time to time, and failure to comply with any of the same shall be grounds for an action to recover sums due, for damages or injunctive relief, or both, maintainable by the Managing Agent or Board on behalf of the Association or, in the proper case, by any aggrieved apartment owner.

Section XI. Enforcement, the House Rules provides:

> The violation of any House Rules adopted by the Board of Directors of the Marine Surf Association of Apartment Owners shall give the Board of Directors or its Agent, the right to enjoin, abate or remedy by appropriate legal proceedings, either at law or in equity, the continuance of any such breach, and all costs thereof, including attorneys' fees, shall be charged to and paid by the defaulting apartment owner.

11. Further, HRS § 514B-112(c) requires all owners, tenants, and persons using the property to comply strictly with the Project Documents and provides that failure to do so constitutes grounds for an action to recover sums due or injunctive relief or both maintainable by the Board on behalf of the Association:

> Each unit owner, tenants and employees of an owner, and other persons using the property shall comply strictly with the covenants, conditions, and restrictions set forth in the declaration, the bylaws, and the house rules adopted pursuant thereto. Failure to comply with any of the same shall be grounds for an action to recover sums due, for damages or injunctive relief, or both, maintainable by the managing agent, resident manager, or board on behalf of the association or, in a proper case, by an aggrieved unit owner.

12. HRS § 514B-157 provides that all costs and expenses, including reasonable attorneys' fees, incurred by or on behalf of the Association in enforcing any provision of the Project Documents and the Condominium Property Law against an owner, occupant, tenant, employee of an owner, or any other person who may in any manner use the property, shall be promptly paid on demand to the Association by such person or persons. Accordingly, OWNER is liable for the attorneys' fees and costs incurred by the Association in connection with the violations of the Project Documents noted herein, and additionally, the Association is entitled to recover fees under HRS §607-14. Also, Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration and Section XI. Enforcement, of the House Rules, also provides for OWNER's obligation for the legal fees and costs incurred by the Association in having to compel OWNER's compliance with the Project Documents and the Condominium Property Law.

13. The Association seeks an award of the Association's costs and expenses, including, but not limited to, the amount reflected in the Invoice (being $2,260.15, as shown on Exhibit "2") and reasonable attorneys' fees and costs incurred in connection with the instant action and the enforcement of the Project Documents and the Condominium Property Law, to be shown by appropriate motion.

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD STE 350
COTTONWOOD HEIGHTS, UT 84047

#6130 P.O. 1518

INVOICE

INVOICE DATE:	05/16/2018
CUSTOMER #:	73744
SR #:	33409266
INVOICE #:	5000875502
PO #:	
TERMS:	IMMEDIATE
TOTAL DUE:	$2,260.15

BILL TO:

ATTN: ACCOUNTS PAYABLE
AOAO MARINE SURF WAIKIKI INC
364 SEASIDE AVE
HONOLULU, HI 96815-2532

SHIP TO:

MARINE SURF WAIKIKI
364 SEASIDE AVE
HONOLULU, HI 96815-2532

Reported By: HAROLD HITCHCOCK, 808-754-8559 on 09-May-2018 15:24:00
Resolution Summary: CUSTOMER REPORTED: ELEVATOR NOT RESPONDING, OT OK. TECH (2): FOUND DOORS KNOCKED OFF TRACK. WILL RETURN TO FIX. 5/10 ADJUSTED DOOR HANGERS AND INTERLOCK, TESTED AND RETURNED TO SERVICE: BILLING DUE TO MISUSE NOT COVERED BY CONTRACT.

DATE	DESCRIPTION	QTY	UOM	PRICE	AMOUNT
	HONOLULU BRANCH **Unit:** 1 **Serial #:** US133680 **Contract #:** US52787 Platinum Premiere - Full Maintenance, 24 Hour Callbacks Included - Elevator - With Phone Monitoring				
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/10/2018	Travel Daytime	.25	HR	$477.00	$119.25
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/09/2018	Travel Extra Work Outside the Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Labor Extra Work Outside Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Travel Extra Work Outside the Contract Overtime	.75	HR	$810.90	$608.18

AMOUNT	SALES TAX	PLEASE PAY THIS AMOUNT
$2,158.43	$101.72	$2,260.15

This charge was created because service was not covered by maintenance contracts you may have with thyssenkrupp Elevator.
For Service Related or General Questions, please call 808-834-6300 . For Billing or Payment Questions, please call 801-449-8227 .

DETACH AND RETURN WITH YOUR PAYMENT

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD STE 350
COTTONWOOD HEIGHTS, UT 84047

INVOICE DATE:	05/16/2018
CUSTOMER #:	73744
SR #:	33409266
INVOICE #:	5000875502
PO #:	
TERMS:	IMMEDIATE
TOTAL DUE:	2,260.15

Amount Enclosed: $_____

Payment Method
☐ Personal check enclosed ☐ Money order enclosed ☐ Cashier's check
Please Make Check Payment To: thyssenkrupp Elevator Corporation

REMIT PAYMENT TO:

thyssenkrupp Elevator Corporation
PO BOX 933004
ATLANTA, GA 31193-3004

EXHIBIT "2"

SUMMONS

Form #1DC50

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU **DIVISION**
STATE OF HAWAI'I

Plaintiff

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

Reserved for Court Use

Civil No.

Defendant

NIKODEM PIKOR

Filing Party/Attorney Name, Attorney Number, Firm Name (if applicable), Address, and Telephone Number

PHILIP L. LAHNE (3709)
GLENN S. HORIO (8151)
Anderson Lahne & Fujisaki LLP
733 Bishop Street, Suite 2301
Honolulu, Hawaii 96813
Telephone (808) 536-8177
Facsimile (808) 356-7631

SUMMONS

THE STATE OF HAWAI'I:

TO: The Director of Public Safety of the State of Hawai'i, the Director's deputy, or any police officer or other person authorized by the laws of the State of Hawai'i:

This Summons shall not be personally delivered between 10:00 p.m. and 6:00 a.m. on premises not open to the public, unless a Judge permits, in writing on this Summons, personal delivery during those hours.

TO THE DEFENDANT:

You are required to file a written answer or appear before the District Judge of this Court, in the Judge's Courtroom, on the day and at the time designated by the checked box on page 2. If the Defendant is a corporation or limited liability company, Hawai'i law requires it to be represented by an attorney licensed to practice in the State of Hawai'i.

IF YOU OR YOUR ATTORNEY FAIL TO ATTEND THE COURT HEARING AT THE TIME AND PLACE DESIGNATED OR FILE A WRITTEN ANSWER A DEFAULT JUDGMENT WILL BE TAKEN AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

NOTICE TO PARTIES: (Honolulu Division only): If this case involves a residential lease and if the Defendant(s) disagrees with the statements in the Complaint, the Court may require the parties to submit their dispute to mediation at the Pre-Trial conference that will be scheduled on the Monday, not a holiday, following the court date specified above. If the Monday following your court date is a holiday, the Pre-Trial conference will occur on the next business day. If the parties are not able to resolve the dispute within 20 minutes of mediation, the Cout will set a trial date.

Date: MAY 31 2019

Clerk

SEE PAGE 2

COURT ADDRESSES AND RETURNABLE DAYS:

☒ **Honolulu Division, 1111 Alakea Street, 10th floor Courtroom 10A or 10B, Honolulu, Hawai'i**

☐ at 8:30 a.m. on the fifth day following date of service, excluding Saturdays, Sundays, legal holidays for summary possession.

or

☑ at 1:30 p.m. on the second Monday following date of service, and should that Monday be a legal holiday then upon the next business day.

☐ **'Ewa Division, 870 Fourth Street, Pearl City, Hawai'i**

☐ at 9:00 a.m. on the second Thursday following date of service, and should that Thursday be a legal holiday then upon the next Thursday.

☐ **Ko'olaupoko OR Ko'olauloa Division, 45-939 Po'okela Street, Kāne'ohe, Hawai'i**

☐ at 9:00 a.m. on the second Friday following date of service, and should that Friday be a legal holiday then upon the next Friday.

☐ **Wahiawā OR Waialua Division, 1034 Kilani Avenue, Wahiawā, Hawai'i**

☐ at 9:00 a.m. on the second Wednesday following date of service, and should that Wednesday be a legal holiday then upon the next Wednesday.

☐ **Wai'anae Division, 4675 Kapolei Parkway, Kapolei, Hawai'i**

☐ at 9:00 a.m. on the second Tuesday following date of service, and should that Tuesday be a legal holiday then upon the next Tuesday.

Mailing address for the Courts: **1111 Alakea Street, Civil Division, Third floor, Honolulu, Hawai'i 96813**

In accordance with the Americans with Disabilities Act and other applicable state and federal laws, if you require an accommodation for a disability when working with a court program, service, or activity, please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 at least ten (10) working days before your proceeding, hearing, or appointment date. **For Civil related matters, please call 538-5629 or visit the District Court Service Center at 1111 Alakea Street, Third (3rd) Floor.**